

EXCLUSIVE LISTING REPRESENTATION AGREEMENT

DefendableOS · Disposition Assignment · Commission at Closing

Effective Date: _____ **Agreement ID:** DDEED-REP-DOS-001-v1 **Supersedes:** 02_LOU_DRAFT.md (which was drafted under incorrect vendor engagement model)

PARTIES

OWNER (the “Principal”) Donovan Mackey Mr. DefendableOS · founder · sole authorized representative
DefendableOS / Swarm & Bee LLC Address: [to be filled by Owner]

BROKER (the “Exclusive Listing Broker”) Swarm and Bee LLC · DBA dev · acting as Exclusive Listing Broker
Address: [to be filled by Broker] Authorized signatory: dev · Senior Architect

1 · ENGAGEMENT

Owner hereby retains Broker as **EXCLUSIVE LISTING BROKER** for the disposition of the DefendableOS asset (the “Asset”), including but not limited to:

- The DefendableOS brand and all associated trademarks
- The defend-A-pedia vocabulary asset (defendapedia.eth · 62+ DDEED-VOCAB anchored)
- The streetvocab.eth · streetledger.eth · streetchat.eth ENS quartet
- All trained model artifacts (SwarmCurator family · SwarmJelly · SwarmPharma · SwarmCapitalMarkets · etc.)
- All training corpus and dataset pairs (~1.5M as of Effective Date)
- All Tribunal infrastructure and adjudication doctrine
- All DDEED-DOV-* deeds anchored on Hedera HCS topic 0.0.10291838
- All books-and-records artifacts published to streetledger.eth
- Associated production infrastructure as agreed in writing between the parties

Broker shall represent Owner exclusively in marketing the Asset to qualified buyers under the terms of this Agreement.

2 · TERM AND EXCLUSIVITY

2.1 Exclusivity Period: 12 months from Effective Date.

2.2 Tail / Protection Period: 12 months following expiration or termination of this Agreement. If a buyer was first introduced or substantively engaged by Broker during the Exclusivity Period (per documented buyer list maintained by Broker), commission per Section 4 applies if such buyer closes within the Tail Period.

2.3 Single Broker: During the Exclusivity Period, Owner shall not engage any other broker, agent, finder, or intermediary for the Asset. All buyer inquiries shall be routed to Broker for qualification.

2.4 Buyer List: Broker shall maintain a written log of all buyers contacted, qualified, or substantively engaged. This list is the basis for Tail Period commission claims and shall be shared with Owner monthly.

3 · BROKER OBLIGATIONS (the 4 Work Streams)

Broker shall execute the following work streams at Broker's expense (subject to Section 5 Marketing Budget):

3.1 Defend the Asset · Make it Bankable - Produce institutional-grade BOV (Broker's Opinion of Value) - Produce buyer-facing OM (Offering Memorandum) - Complete bankability audit - close all titled-asset gaps - Anchor all books-and-records artifacts on Hedera HCS at each milestone - Document 5 Proofs (Origin · Quality · Process · Economics · Trust) for the Asset

3.2 Go to Market · Public Interface - Build and operate public marketing website (defendableos.com) - Build and operate buyer due-diligence dashboard (app.defendableos.com) - Build and operate /verify rail for institutional-grade asset verification - Maintain comp-set positioning and DDEED explorer

3.3 Generate Offers - Execute MAGIC funnel (Meetings · Appraisals · Genuine interest · Ink · Close) - Maintain qualified-buyer pool across 10 comp categories - Triage all inbound and outbound buyer interest - Provide Owner with weekly engagement reports during Exclusivity Period

3.4 Create High Probability of Close - Apply PASS doctrine to filter unqualified buyers - Manage LOI process - maintain backup buyer pool - Coordinate due diligence response (books-and-records package) - Coordinate PSA negotiation alongside Owner-side counsel - Coordinate closing · DDEED title transfer · payment wire

4 · COMPENSATION

4.1 Commission Structure · sliding scale by deal type, all paid AT CLOSING:

Deal Type	Commission	Commission Floor	Commission Cap
Full company sale (M&A)	5% of enterprise value	\$250,000	No cap
Strategic partnership / JV	6% of 5-year deal value	\$150,000	\$2,000,000
IP license (enterprise)	8% of 3-year license value	\$100,000	\$1,000,000
Spin-out / carve-out	6% of asset value	\$200,000	No cap
Other deal structures	TBD per addendum	TBD	TBD

4.2 Listing Premium Discount: If Owner directly introduces the closing buyer (vs Broker-procured), commission is reduced by 15%. Direct-introduction status determined by the Buyer List maintained per Section 2.4.

4.3 Commission Payment: All commissions paid via wire transfer at closing, simultaneous with Owner's receipt of deal proceeds, from escrow per the PSA.

4.4 No Hourly Fees: Broker shall not invoice Owner for hourly work, project management, build labor, design, or any other professional services rendered. ALL such work is included in Broker's listing investment, recoverable only via commission at closing.

4.5 No Up-Front Fees: Owner shall pay no retainer, no engagement fee, no setup fee, and no milestone invoices to Broker.

5 · MARKETING BUDGET

5.1 Allowance: Up to \$50,000 in out-of-pocket marketing expenses reimbursable by Owner to Broker at closing.

5.2 Eligible Expenses: - OM printing and production - Video production for buyer-facing materials - Paid distribution and PR - Third-party data subscriptions for buyer pool research (e.g., PitchBook · CB Insights) - Conference travel and direct buyer meeting expenses

5.3 Ineligible Expenses (Broker absorbs): - Website build · app build · DDEED system completion - Staff time · in-house design · in-house engineering - Hedera HCS anchoring fees (Broker absorbs) - Standard office overhead

5.4 Reimbursement Trigger: - Upon Closing: reimbursed via deduction from commission - Upon Performance-Gate Termination by Owner (Section 7): NOT reimbursed (Broker eats marketing spend) - Upon expiration without close: NOT reimbursed

6 · OWNER OBLIGATIONS

6.1 Cooperation: Owner shall make himself reasonably available for buyer meetings, due diligence calls, and PSA negotiation.

6.2 Accurate Disclosure: Owner shall provide accurate information about the Asset, including any prior offers, contingent liabilities, or material disclosures required for institutional buyer due diligence.

6.3 No Side Deals: Owner shall not negotiate independently with any buyer during the Exclusivity Period without informing Broker.

6.4 Right to Approve: Owner retains absolute right to accept or reject any offer at his sole discretion. Broker may advise but does not have authority to bind Owner.

7 · PERFORMANCE GATES

7.1 6-Month Gate: If no qualified offer at $\geq 75\%$ of the BOV value has been received within 6 months of the Effective Date, Owner may terminate this Agreement without penalty.

7.2 9-Month Gate: If no executed LOI has been received within 9 months of the Effective Date, Owner may terminate this Agreement without penalty.

7.3 Termination Effect: Upon performance-gate termination: - Owner retains ALL build work product (website · app · DDEED system completions) at no additional cost - Broker forfeits all marketing budget reimbursement - Broker forfeits all commission (no Tail per Section 2.2 on performance-gate termination) - Owner is free to engage other brokers immediately

7.4 Non-Performance Gate Termination: Owner may terminate at any time for material breach by Broker (notice and cure provisions apply per Section 10).

8 · INTELLECTUAL PROPERTY

8.1 Asset IP: Owner retains all intellectual property in the Asset itself.

8.2 Marketing IP: All marketing materials produced by Broker for the listing (OM · BOV · website · app · video) are licensed to Owner royalty-free for any purpose, including post-engagement use with other brokers or buyers.

8.3 Broker Tools: Broker retains ownership of internal tooling, processes, and methodologies developed during the engagement that are not specific to the Asset.

8.4 No Owner Branding Mandates: Founder voice and brand doctrine preserved per existing defend-A-pedia v0.3.0 vocabulary canon. All marketing materials pass V03 founder-voice validator chain.

9 · CONFIDENTIALITY

9.1 Buyer Information: Broker shall maintain strict confidentiality of buyer identities, offers, and DD materials.

9.2 Asset Information: Public marketing materials are by definition not confidential. Internal Owner financials shared with Broker for BOV production are confidential.

9.3 Survival: Confidentiality obligations survive termination for 5 years.

10 · DISPUTE RESOLUTION

10.1 Notice and Cure: Either party may notice a material breach in writing. The breaching party has 30 days to cure.

10.2 Mediation: Disputes shall be resolved through good-faith mediation prior to litigation.

10.3 Governing Law: This Agreement is governed by the laws of the State of Florida (Owner's domicile).

10.4 Jurisdiction: Palm Beach County, FL · per Owner's licensed brokerage jurisdiction.

11 · MISCELLANEOUS

11.1 Entire Agreement: This document represents the entire agreement between the parties regarding the disposition of the Asset.

11.2 Amendments: Must be in writing and signed by both parties.

11.3 Counterparts: This Agreement may be executed in counterparts, including electronic signatures.

11.4 Severability: If any provision is unenforceable, the remainder remains in effect.

11.5 Hedera Anchor: This executed Agreement shall be hashed and anchored on Hedera HCS topic 0.0.10291838 within 24 hours of execution. The anchor ID shall be appended to this document as Exhibit A.

SIGNATURES

OWNER

Donovan Mackey · Mr. DefendableOS Date: _____

BROKER

dev · Senior Architect (Exclusive Listing Broker) Date: _____

EXHIBIT A · HEDERA ANCHOR

Topic ID:	0.0.10291838
Anchor TX:	[to be filled within 24hr of execution]
Anchor timestamp:	[to be filled within 24hr of execution]
Document hash:	sha256:[computed at execution]
Verification URL:	https://hashscan.io/mainnet/topic/0.0.10291838

 *Defend the asset. Make it bankable. Go to market. Generate offers. Drive to close. To the shed.*